*Number* 29 *of* 2006

# SEA POLLUTION (MISCELLANEOUS PROVISIONS) ACT 2006

**REVISED**

**Updated to 13 April 2017**

This Revised Act is an administrative consolidation of the *Sea Pollution (Miscellaneous Provisions) Act 2006*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Knowledge Development Box (Certification of Inventions) Act 2017* (6/2017), enacted 12 April 2017, and all statutory instruments up to and including *Social Housing Assessments (Summary) Regulations 2013 (Revocation) Regulations 2017* (S.I. No. 161 of 2017), made 13 April 2017, were considered in the preparation of this revision.

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*Number* 29 *of* 2006

**SEA POLLUTION (MISCELLANEOUS PROVISIONS) ACT 2006**

**REVISED**

**Updated to 13 April 2017**

AN ACT TO GIVE EFFECT TO THE INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR BUNKER OIL POLLUTION DAMAGE 2001 DONE AT LONDON ON 23 MARCH 2001 AND TO MAKE PROVISION FOR MATTERS RELATING TO COUNCIL REGULATION (EC) NO. 44/2001 OF 22 DECEMBER 2000 ON JURISDICTION AND THE RECOGNITION AND ENFORCEMENT OF JUDGMENTS IN CIVIL AND COMMERCIAL MATTERS IN SO FAR AS IT RELATES TO THAT CONVENTION, TO GIVE EFFECT TO THE PROTOCOL 2000 ON PREPAREDNESS, RESPONSE AND CO-OPERATION TO POLLUTION INCIDENTS BY HAZARDOUS AND NOXIOUS SUBSTANCES 2000 DONE AT LONDON ON 15 MARCH 2000, TO GIVE EFFECT TO THE INTERNATIONAL CONVENTION ON THE CONTROL OF HARMFUL ANTI-FOULING SYSTEMS DONE AT LONDON ON 5 OCTOBER 2001, TO GIVE EFFECT TO ANNEX VI AS ADDED TO THE MARPOL CONVENTION BY THE PROTOCOL TO THAT CONVENTION DONE AT LONDON ON 26 SEPTEMBER 1997, TO GIVE EFFECT TO THE INTERNATIONAL CONVENTION FOR THE CONTROL AND MANAGEMENT OF SHIPS' BALLAST WATER AND SEDIMENTS 2004 DONE AT LONDON ON 13 FEBRUARY 2004, TO AMEND THE SEA POLLUTION ACTS 1991 TO 1999, TO AMEND THE HARBOURS ACT 1996 AND TO PROVIDE FOR RELATED MATTERS.

[31*st October*, 2006]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

# PART 1

## Preliminary and General

Short title and commencement.

**1.—** (1) This Act may be cited as the Sea Pollution (Miscellaneous Provisions) Act 2006.

(2) This Act comes into operation on such day or days as the Minister for Transport may by order or orders appoint either generally or with reference to a particular purpose or provision and different days may be fixed for different purposes and different provisions.

(3) The Sea Pollution Acts 1991 to 1999, this paragraph and *Part 3* of this Act may be cited together as the Sea Pollution Acts 1991 to 2006, and shall be construed together as one Act.

(4) The Harbours Acts 1996 to 2005, this paragraph and *Part 4*may be cited together as the Harbours Acts 1996 to 2006.

*Section7(2).*

## SCHEDULE

### INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR BUNKER OIL POLLUTION DAMAGE 2001

The States Parties to this Convention,

RECALLING article 194 of the United Nations Convention on the Law of the Sea, 1982, which provides that States shall take all measures necessary to prevent, reduce and control pollution of the marine environment,

RECALLING ALSO article 235 of that Convention, which provides that, with the objective of assuring prompt and adequate compensation in respect of all damage caused by pollution of the marine environment, States shall co-operate in the further development of relevant rules of international law,

NOTING the success of the International Convention on Civil Liability for Oil Pollution Damage, 1992 and the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992 in ensuring that compensation is available to persons who suffer damage caused by pollution resulting from the escape or discharge of oil carried in bulk at sea by ships,

NOTING ALSO the adoption of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 in order to provide adequate, prompt and effective compensation for damage caused by incidents in connection with the carriage by sea of hazardous and noxious substances,

RECOGNIZING the importance of establishing strict liability for all forms of oil pollution which is linked to an appropriate limitation of the level of that liability,

CONSIDERING that complementary measures are necessary to ensure the payment of adequate, prompt and effective compensation for damage caused by pollution resulting from the escape or discharge of bunker oil from ships,

DESIRING to adopt uniform international rules and procedures for determining questions of liability and providing adequate compensation in such cases,

HAVE AGREED as follows:

*Article 1*

**Definitions**

For the purposes of this Convention:

1. "Ship" means any seagoing vessel and seaborne craft, of any type whatsoever.

2. "Person" means any individual or partnership or any public or private body, whether corporate or not, including a State or any of its constituent subdivisions.

3. "Shipowner" means the owner, including the registered owner, bareboat charterer, manager and operator of the ship.

4. "Registered owner" means the person or persons registered as the owner of the ship or, in the absence of registration, the person or persons owning the ship. However, in the case of a ship owned by a State and operated by a company which in that State is registered as the ship's operator, "registered owner" shall mean such company.